

14.	26PR0144	IN THE MATTER OF THE SURVIVOR'S TRUST UNDER THE JAMES LESLIE OLICH AND NANCY TRAVER OLICH REVOCABLE TRUST DATED SEPTEMBER 2, 2015 AS AMENDED, AS RESTATED IN FULL ON SEPTEMBER 13, 2019
PETITION FOR ORDER APPOINTING SUCCESSOR TRUSTEE AND MODIFICATION TO CHANGE THE GOVERNING LAW OF THE TRUST TO FLORIDA		

Petitioner, Melissa Riddley ("Petitioner" or "Melissa"), presents this Petition for Order Appointing Successor Trustee and Modification to Change the Governing Law of the Trust to Florida.

The James Leslie Olich and Nancy Traver Olich Revocable Trust (the "Trust") was executed by James Leslie Olich ("James") and Nancy Traver Olich ("Nancy") on September 2, 2015. James has two adult children from a prior marriage: Paul Anthony Olich ("Paul") and Melissa Ridley ("Melissa"). Nancy has three children from a prior marriage: Mitchell Clark Trale ("Mitchell"), Adam Bon Durant Traver ("Adam"), and Ross Davidson Traver ("Ross").

James and Nancy executed an amendment and restatement to the Trust (the "Restated Trust") on September 13, 2019. Nancy died on November 6, 2021.

James executed an amendment to the Restated Trust on July 15, 2024 (the "2024 Amendment"). The 2024 Amendment changed the distributive provision of the Survivor's Trust to be distributed in equal shares to Melissa and Paul. James died on July 20, 2025, in the State of Florida, County of Martin.

Petition for Order Appointing Successor Trustee

Upon James' death, the Restated Trust became irrevocable pursuant to its terms. Section 7.4 of the Restated Trust identifies Premier Trust, Inc., a Nevada Chartered Trust ("Premier Trust") as the successor trustee and provided if Premier Trust is unwilling or unable to serve as trustee, a new trustee or cotrustees shall be appointed by the court. On September 30, 2025, Premier Trust declined to serve as successor trustee.

The Court has the discretion to appoint a trustee to fill a vacancy pursuant to Probate Code § 15660. In selecting a trustee, the court shall give consideration to any nomination by the beneficiaries who are 14 years of age or older. Petitioner has requested she be appointed as trustee and a nomination has been supplied by Paul. Petitioner's request to be appointed as trustee is granted.

Petition for Modification to Change the Governing Law of the Trust to Florida

Section 8.12 of the Restated Trust provides that California law shall apply. The Court may modify the administrative or dispositive provisions of the trust if, owing to circumstances not known to the settlor and not anticipated by the settlor, the continuation of the trust under its

terms would defeat or substantially impair the accomplishment of the purposes of the trust. Probate Code § 15409(a).

Petitioner seeks modification to change the governing law to Florida law pursuant to Probate Code § 15409 as the death of Decedent in Florida, both beneficiaries, assets, and probate administration will be initiated there, constitutes circumstances the settlors did not anticipate when the Trust was created and last amended. Petitioner further asserts administering the Survivor's Trust under California Law substantially impairs its primary purpose of maximizing the assets available for the beneficiaries by subjecting the trust estate to avoidable California income taxes.

Petitioner has not provided any evidence explaining why these circumstances could not reasonably have been anticipated. Additionally, Petitioner has not provided evidence supporting the assertion that the Trust will be subject to California taxation which would hinder the Trust's primary purpose of maximizing assets and how a change of law would further this purpose. Without such evidence, Petitioner's request is denied.

TENTATIVE RULING #14:

PETITION FOR ORDER APPOINTING SUCCESSOR TRUSTEE

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

PETITION FOR MODIFICATION TO CHANGE THE GOVERNING LAW OF THE TRUST TO FLORIDA

PETITIONER'S REQUEST IS DENIED.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES

July 6, 2026
Dept. 9
Probate Tentative Rulings

ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.